

BLUE SLIP

HJD/C-42

(Received under Act No.II of 1990)

ORDER OF THE Court

In the Court of Mr. Justice Muhammad Waheed Khan

Case No. Pl. A No. 248/2015 Title Riaz Ahmed etc.

Case No. _____ Title v.

Case No. _____ Title The State

Decided on 15.12.2020

(a) Judgment approved for reporting ☒ Yes

CERTIFICATE

Certified that the judgment/order is based upon or enunciates a principle of law/decides a question of law which is of first impression/distinguishes/over-rules/explains a previous decision.

S. U. C.

JUDGE

- Note:-
- (1) This slip is only to be used when some action is to be taken.
 - (2) If the slip is used, the Reader must attach it to the top of the first page of the judgment.
 - (3) Reader must ask the Judge writing the Judgment whether the Judgment is approved for reporting.
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Dated

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH,
BAHAWALPUR
(JUDICIAL DEPARTMENT)

Cr. Appeal No.248 of 2015/BWP

Riaz Ahmad etc. v. The State, etc.

Date of hearing 15.12.2020

Appellants by: Hafiz Shahid Nadeem Kahloon, Syed Aasim Ali Bokhari and Mian Kashif Saleem, Advocates.

Complainant by: Mr. Muhammad Umair Mohsin and Syed Zeeshan Haider, Advocates.

State by: Mr. Muhammad Tariq, DPG

MUHAMMAD WAHEED KHAN, J.- Through this appeal, appellants Riaz Ahmad and Noor Samand have challenged their conviction and sentence passed by learned Additional Sessions Judge, Bahawalnagar vide judgment dated 02.05.2015 in case FIR No.146/2014 dated 03.04.2014, registered under Sections 302, 364, 34 PPC at Police Station Doonga Bunga, Bahawalnagar, whereby they were convicted and sentenced as under:-

Under section 302(b) PPC, awarded life imprisonment as Ta'zir each with payment of compensation of Rs.2,00,000/- each to the legal heirs of deceased and in case of non-payment of compensation amount, they shall further undergo a period of six months S.I. each with benefit of section 382-B Cr.P.C.

One Shahbaz was tried separately being juvenile and acquitted by the learned Trial Court vide judgment of even date.

2. Feeling aggrieved of the judgment passed by the learned trial Court, appellants assailed their conviction and sentence by filing the instant appeal.

3. Prosecution story as narrated by the complainant Muzaffar Mehmood in application Ex-PI is as under:-

"That on 01.04.2014 when he was present with his brother Muzammil Mehmood deceased at stamp vendor place in Sub-tehsil Office Doonga Bunga, at about 02:00 p.m. Shehbaz accused, present in the court came there and talked with Muzammil Mehmood deceased about writing of stamp paper in the house, who told that he would come after Maghrib prayer. Thereafter, Muzammil Mehmood came to the house and after collecting stamp register and bag went away but did not come back. The complainant searched him who did not come throughout the whole night and on 02.04.2014, it came to know by the complainant that Muzammil Mehmood deceased offered his Maghrib prayer in Jamiya Masjid Muhammadi Ahl-i-Hadith with Qari Abu Bakar who is Imam of the said Masjid and thereafter he went to the shop of Sanaullah Karyana Store and got loaded with the recharge of Rs.50/- in his mobile number 0303-5972733. On the same day at about 04:00 p.m. Qari Akram, Imam Masjid rang up Aftab Alam the brother of complainant that one son of Abdullah Ansari has picked the bag under the transformer. Aftab told this fact to the complainant and they went to Qari Akram and brought the stamp vendor bag and the mobile of the deceased inside the bag which was switched off.

4. After conclusion of investigation report u/s 173 Cr.P.C., was submitted before the learned trial Court for commencement of trial. Thereafter, formal charge against the appellants was framed, to which they pleaded not guilty, and claimed trial.

5. Prosecution in order to prove its case produced oral evidence from PW-1 to PW-12 to bring home the guilt of the

appellants and after producing certain documents, closed its evidence.

6. After completion of prosecution evidence, statements of appellants/accused were recorded u/s 342 Cr.P.C., however, they opted not to appear as witnesses u/s 340 (2) Cr.P.C., while answering to a question (*Why this case against you and why the PWs deposed against you?*), accused Riaz Ahmad replied as under:-

"The PWs are either closely related to the deceased or have years old longstanding business and family relations and the complainant and the PWs are inimical towards me and my co-accused."

Accused Noor Samand replied the above said question in the following manner:-

"The PWs are a fraudulent gang inter se. They are interested witnesses and have deposed against me and my co-accused to prove the concocted story".

7. After evaluating prosecution evidence available on record, learned trial Court found the appellants guilty for commission of alleged crime, as a result thereof, they were convicted and sentenced in the afore-stated terms.

8. In support of the instant appeal, learned counsels for the appellants submit that the evidence of the prosecution hinges upon the circumstantial evidence; the case of the prosecution is that deceased was lastly seen in the company of the appellants, but three out of four witnesses, who had allegedly seen the deceased in the company of the appellants, have not been produced by the prosecution and the only witness produced in this regard is Muhammad Abbas, whose evidence is also shaky in nature and cannot be relied upon on any hypothesis. As far as the extra-judicial confession is concerned, there is no mention of time, mode and manner of alleged killing of deceased by the

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appellants. Even otherwise, there was no occasion for the appellants to confess their guilt before the witnesses, who have no influence or social status. So, under the circumstances, this piece of evidence has no legal sanctity in the eye of law. The recovery allegedly affected from the appellants is of articles of ordinary nature, hence, no evidentiary value can be attached with them. So, under the circumstances, since the prosecution remained failed to prove its case 'beyond reasonable shadow of doubt against the appellants, so, by accepting the instant appeal, the appellants may be acquitted from the charge.

9. On the other hand, learned law officer assisted by learned counsel for the complainant, while supporting the impugned judgment, vigorously argued that the prosecution has ably proved its case by producing cogent and trustworthy evidence in the shape of extra-judicial confession provided by the two independent witnesses, namely, Farzand Ali (PW.10) and Faqir Muhammad (PW.11), coupled with the evidence of Muhammad Abbas (PW.7), who had given each and every detail qua the last seen evidence and the prosecution evidence is sufficiently corroborated by the medical evidence and the recovery allegedly affected from the accused persons. So, under the circumstances, both the accused persons have been rightly held guilty and convicted accordingly, hence, the instant appeal may be dismissed.

10. I have heard the arguments advanced by the learned counsel for the parties and have gone through the record with their assistance and found, that admittedly, there was no direct evidence in the case and prosecution stance was based upon circumstantial evidence. In such like situation, the basic criteria is that each and every circumstance should be structured in such a manner that there should be a continuous chain. One end of

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which should touch the dead body, whereas the other around neck of the accused. Missing of any one circumstance would break the whole of the chain and would be fatal for the prosecution.

11. The prosecution evidence is structured on the last seen evidence, provided by Muhammad Abbas (PW.7) and Muhammad Shafi and extra-judicial confessions in the shape of evidence, consist of statements of Farzand Ali (PW.10) and Faqir Muhammad (PW.11), the evidence of recovery of certain articles, allegedly affected from the appellants and pointing out the place by the accused persons, where they have thrown the dead body in the canal. First of all, I take up the evidence of last seen. In fact there were two witnesses, who joined the investigation claiming themselves that they have seen the deceased Muzammil Mehmood in the company of Riaz Ahmad and Noor Samand appellants on 01.04.2014, when they came out of the mosque after offering Maghrib prayer and they had seen that both the accused/appellants came there on a motorcycle, they boarded Muzammil Mehmood deceased on the motorcycle in center and on their asking, Muzammil Mehmood told them that he is going to write a stamp paper, but the prosecution has produced only Muhammad Abbas as PW.7, whereas Muhammad Shafi was not produced. While going through the statement of PW.7, I straightway noted that the said PW is not resident of the village of the complainant and the deceased rather he himself admitted, in response to a very first question put to him during the cross-examination as under:-

"It is correct that my place of residence is in Chak Manna Siri Rama near Pul Bareyka Head Sulemanki which is at a distance of about 40/50 miles from the place of occurrence. Volunteered that my place of residence is also in Mauza Dholi

Wala situated in the area of P.S. Doonga Bunga which is at a distance of 10-miles from the place of occurrence."

It is admitted fact that he got his statement recorded u/s 161 Cr.P.C. as Exh.PA after 20-days of the occurrence and it is also admitted fact that he apprised the factum of his last seen of the deceased with the appellants to the complainant on 19.04.2014 and on his disclosure, the complainant moved an application Exh.PJ to the police on 20.04.2014, wherein the present appellants were nominated as accused. Giving the reason for providing this information with such a delay, he just stated that after saying Maghrib prayer, as stated above, he went to Basti Buulerey Joyia and then to Basti Mannawali and on 19.04.2014, when he came back to his parents' house, he came to know about the murder of Muzammil Mehmood and thereby he intimated the complainant of the above said circumstances. This explanation on part of the witness is not satisfactory in any manner. Even otherwise, his availability in the village of the deceased is highly doubtful, as according to him, he lives 40/50 miles away from the place of occurrence and he has not given any reason or occasion of visiting the village of the deceased in the evening of 01.04.2014. During his cross-examination when the question was put to him in this regard, he just stated that on 01.04.2014 he was going to the house of Haneefan Bibi daughter of his paternal aunt and thereafter he offered prayer in the way and went to the house of Haneefan Bibi. The house of Haneefan Bibi is towards east from the mosque at a distance of about three squares, but he has neither stated any specific reason for visiting the daughter of his paternal aunt nor during the investigation such aspect has been interrogated by the investigating agency. The other aspect of the case is that during the cross-examination, he stated as under:-

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"Abu Bakar Imam Masjid of the mosque was also present when I met the accused persons and the deceased. Abu Bakar Imam Masjid had also seen the deceased as well as accused persons along with him."

Meaning thereby that Qari Abu Bakar, who is the resident of the same village had the knowledge of going the deceased with the appellants, but he never disclosed this factum either to the complainant or to the police. So, all these factors suggest that the testimony of Muhammad Abbas, the witness of last seen is highly improbable and no implicit reliance can be placed on it, to convict the accused persons for an offence carrying capital punishment.

12. The 2nd piece of evidence equipped by the prosecution is the extra-judicial confessions, provided by Farzand Ali (PW.10) and Faqir Muhammad (PW.11). While narrating the incident of extra-judicial confessions, allegedly made by the appellants, both of them stated that on 18.05.2014, when they were present at their dera, Noor Samand and Riaz Ahmad accused came there. First of all Riaz Ahmad accused confessed his guilt before the witnesses and had allegedly given the detail of committing the murder of the deceased and thereafter throwing the dead body in the canal and then Noor Samand accused confessed his guilt, but astonishingly both the witnesses just stated that 'Noor Samand accused also narrated the same story, stated by accused Riaz Ahmad to them', without giving any detail, the accused uttered before them. So, under the circumstances, I observed that this portion of evidence of the witnesses, wherein they stated about the extra-judicial confession of Noor Samand appellant, is not admissible in evidence, as both the witnesses have not given the details of the narration/confession, allegedly made by Noor Samand appellant before them. Reliance in this regard is placed

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on the *ratio descendi* laid down by the august Supreme Court of Pakistan in case of "Tahir Javed v. The State" (2009 SCMR 166) & by this court in case of "Nazar Muhammad v. The State" (2009 P.Cr.L.J. 855).

13. Although, both the witnesses, Farzand Ali and Faqir Muhammad are closely related to the deceased and the complainant. Farzand Ali is paternal uncle (chacha), whereas Faqir Muhammad is nephew of Farzand Ali, even then, both of them, in any way did not enjoy the position wherein they could use their influence upon the complainant or the legal heirs of the deceased. It has been observed from time to time in the various judgments of the superior Courts of the country that extra-judicial confession has always been taken with the pinch of salt and it must be received with utmost caution. As an extra-judicial confession is not a direct evidence, it must be corroborated in material particulars before making the basis of conviction. Reliance in this regard is placed on the judgments of august Supreme Court of Pakistan rendered in the cases titled as "Azeem Khan and another v. Mujahid Khan and others" (2016 SCMR 274), "Nasir Javed and another v. The State" (2016 SCMR 1144), "Imran alias Dully and another v. The State and others" (2015 SCMR 155) and "Sajid Mumtaz and others v. Basharat and others" (2006 SCMR 231).

14. As far as the recovery of dead body is concerned, admittedly, the police got it recovered from the canal 3-R in Chak Aziz on 04.04.2014 and on 14.04.2014, the police has sent the challan to the court, declaring it as untraced. Thereafter, on arrest of the appellants, they allegedly identified the place where they threw the dead body of the deceased in the canal, but since nothing has been recovered in consequence of their disclosure, so, this portion of evidence does not qualify under Article 40 of

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Qanun-e-Shahadat Order, 1984, wherein it is mentioned that the evidence in this regard is admissible only if something is recovered in consequence of disclosure on part of the accused persons. So, this part of evidence is of no use for the prosecution.

15. Adverting to the recovery of certain articles, allegedly affected from the appellants during the course of investigation, it is simply observed that these articles do not connect with the accused persons in any manner, hence, could not provide the requisite corroboration to the other pieces of evidence. It is well settled by now that one tainted piece of evidence cannot corroborate an other tainted piece of evidence. Reliance in this regard is placed on the cases of "Azeem Khan and another v. Mujahid Khan and others" (2016 SCMR 274) and "Muhammad Bakhsh v. The State" (PLD 1956 S.C. (Pak) 420). It is also frequently settled that the corroborative piece of evidence is relevant only when primary evidence inspires confidence.

16. As a rule of prudence, it is required that each piece of circumstantial evidence should be supported by an independent corroboration, which shall, by itself be sufficient to establish the guilt. However, as observed earlier, each circumstance shall be so connected with each other that it should make one complete chain without there any broken link, but in the instant case there are number of broken links in the chain, and I think that on the basis of available evidence, the guilty verdict against the appellants cannot be allowed to sustain. Guidance in this regard has been sought from the case reported as "Muhammad Hussain v. The State" (2011 SCMR 1127).

17. For the reasons stated supra, this appeal is allowed and the conviction and sentence recorded against the appellants Riaz Ahmad and Noor Samand by the learned trial Court vide

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judgment dated 02.05.2015 are set aside and the appellants are acquitted of the charge. They are directed to be released forthwith, if not required to be detained in any other case.

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(MUHAMMAD WAHEED KHAN)
JUDGE

Approved for reporting.

ق. و. ح. ح.

Judge

Mumtaz

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23/12/2020